VIA EMAIL

January 30, 2019

KALUNDU BEVERAGES LIMITED
Plot 215A Ndipo Road
Off Mumbwa Road
Lusaka
Zambia

Re: International Sales Letter Agreement – Zambia – Predator

Dear Sirs:

Kalundu Beverages Limited ("you/your") has requested Monster Energy Ltd. ("MEL") to sell to you the beverage bases described on Exhibit A (the "Beverage Bases") attached to this letter agreement ("Letter Agreement") to enable you to prepare, package and sell the products under the trademark Predator described on attached Exhibit A (the "Products") solely in the territory ("Territory") described on Exhibit B attached hereto, and MEL is agreeable thereto, subject to and solely in accordance with the terms and conditions specified in this Letter Agreement.

MEL is a wholly owned subsidiary of Monster Energy Company ("MEC"). MEC and/or its affiliates own the exclusive right, title and interest in and to the Trademarks (as defined below). MEL has been authorized by MEC to use the Trademarks (as defined below) and to authorize third parties to prepare, package and sell the Products.

It is MEL's policy that a written distribution agreement and/or manufacturing agreement is to be executed with all our distributors and/or manufacturers and consequently, unless and until a manufacturing agreement is executed, all sales of the Beverage Bases to you will be made in accordance with this Letter Agreement, the provisions of which will continue to apply and be of full force and effect until a written distribution agreement and manufacturing agreement is executed by MEL for the sale of the Products by you in the Territory. For the avoidance of doubt, the Products will be classified as "Other Products" under (and as defined in) the Amended and Restated International Distribution Coordination Agreement for Monster Products, dated as of June 12, 2015, between MEC, MEL and The Coca-Cola Company.

MEL is willing, for the time being, to sell Beverage Bases to you and allow you to prepare, package and sell the Products strictly and exclusively on the terms and conditions set forth in this Letter Agreement. You acknowledge and agree that you have not been appointed as a distributor, manufacturer, packager, franchisee, sales representative, dealer or agent of MEL or any of its affiliates for the Products.

You and MEL therefore agree that to the extent that MEL or its designee that is authorized to sell Beverage Bases to you as identified on attached Exhibit C (each, an "Authorized Supplier") at any time supplies Beverage Bases to you, your personal, non-assignable right to purchase Beverage Bases, and to prepare, package and sell MEL Products shall be limited to each individual transaction that may be approved by MEL in its sole discretion. No oral representations or discussions, no prior or current sales, and no course of conduct or

practice or usage of trade may be relied on by you or be construed to create any obligation on MEL and/or the Authorized Supplier to sell or continue to sell any Beverage Bases to you or to enter into a manufacturing, distribution or any other agreement with you. Your right to prepare, package and sell any Product is limited solely and exclusively to the express terms of this Letter Agreement. Any sale of Beverage Bases by MEL and/or the Authorized Supplier to you shall be of a description and quantity, and at such prices, and on such terms, as MEL and/or the Authorized Supplier may determine from time to time in their sole discretion. Such prices shall not include insurance, commissions, import duties, fees or other charges. All payments by you to MEL and/or the Authorized Supplier shall be made in U.S. dollars or such currency as may be designated by MEL and/or the Authorized Supplier in immediately available funds.

If and to the extent approved by MEL in accordance with the preceding paragraph, you covenant and agree that you will (a) prepare and package the Products using only the Beverage Bases in strict adherence to and compliance with the written instructions issued to you from time to time by MEL, (b) at all times conform to the standards, including, without limitation, quality, hygienic, environmental and otherwise, established in writing from time to time by MEL and comply with all applicable legal requirements, (c) use identification codes on all packing materials for the Products to identify where and by whom the Products were prepared and/or packaged, (d) only use cans and/or bottles and other containers and in other forms or manners as may be approved by MEL in writing from time to time (the "Approved Containers"), and (e) inspect and approve or disapprove all Approved Containers before use.

You agree (a) to use the Beverage Bases and Approved Containers exclusively to prepare, package and/or sell the Products (b) not to sell or resell the Beverage Bases or Approved Containers, nor permit such Beverage Bases and/or Approved Containers to fall into the hands of third parties, without the prior written consent of MEL, and (c) to prepare, package and sell the Products using only the Approved Containers and with approved labels in strict accordance with MEL's policies and instructions, and MEL reserves the right, from time to time and at any time, at its discretion, to modify such policies and instructions then in effect.

You shall permit MEL at all times to enter and inspect the facilities, equipment, and methods used by you, whether directly, indirectly or incidentally, in or for the preparation, packaging, storage and handling of the Products to ascertain your compliance with this Letter Agreement. You shall submit to MEL, at your expense, samples of the Products and of materials used to prepare and package the Products, in accordance with instructions that MEL may give from time to time.

MEL may, at any time, with or without cause, or for no cause, and with or without notice, in its sole discretion, terminate this Letter Agreement, the sale of all or any Beverage Bases to you and/or your right to prepare, package and sell the Products, without incurring any obligation or liability of whatsoever nature and howsoever arising including, without limitation, any obligation or liability for any claim or loss (including loss of profits), costs, damages or expenses (whether general, special, direct, indirect, incidental, consequential or punitive) suffered, incurred or claimed by you. Upon termination of this Letter Agreement or the sale of all or any Beverage Bases to you and/or your right to prepare, package and sell the Products by MEL, MEL may, in its sole discretion, elect to purchase all or any MEL Beverage Bases or Products in your possession by payment of your cost price for such Beverage Bases or Products.

You covenant, represent, acknowledge and agree that (a) MEL is the exclusive owner of all trade names and trademarks associated with MEL and any product marketed, sold or distributed by MEL, including, but not limited to, all trade dress, names, brand names, logos or other production designations or symbols used in connection with the Beverage Bases and Products including without limitation, those set forth on Exhibit D hereto (collectively, the "Trademarks"), (b) you disclaim any rights to the Trademarks, (c) you have not attempted and will not attempt to register any of MEL's Trademarks, (d) you will not engage in any conduct that will cause MEL to be in violation of any statutes, laws or regulations of the United States of America including but not limited to all applicable laws, statutes, regulations, and codes relating to anti-bribery and anti-

corruption including the United States Foreign Corrupt Practices Act, Bribery Act 2010 (England and Wales), the Territory or elsewhere, (e) you will not (i) do business under any name or designation containing a Trademark associated with MEL or any product marketed, sold or distributed by MEL or (ii) cause or permit your business to be operated in a manner which is substantially associated with any of the Trademarks, in either case, without MEL's prior written consent, and (f) you will not at any time alter the Trademarks or the packaging of the Products or use the Trademarks for any purpose other than pursuant to this Letter Agreement.

Upon termination of this Letter Agreement you shall do all things and execute all documents as may reasonably be necessary to convey to MEL all and any rights, permits, approvals or entitlements which directly or indirectly relate to this Letter Agreement, or any other agreement entered into between you and MEL, or any modification, amendment or revision to the foregoing, and/or any MEL products referred to in any such agreement/s between you and MEL.

You represent and warrant to MEL that (a) you have the right and lawful authority to enter into this Letter Agreement and (b) the execution, delivery and performance of this Letter Agreement will not cause or require you to breach any obligation to, or agreement or confidence with, any other person or entity.

No amendment, variation, novation or waiver of any of the provisions of this Letter Agreement shall be effective unless in writing and signed by the duly authorized representatives of both you and MEL. MEL's failure to enforce any provision of this Letter Agreement shall not constitute a waiver of any of MEL's rights or remedies under this Letter Agreement or at law.

Any dispute, controversy or claim arising out of or relating to this Letter Agreement, including, without limitation, the formation, interpretation, breach or termination hereof or whether the claims asserted are arbitrable, shall be referred to and finally resolved by arbitration under the Rules of the London Court of International Arbitration ("LCIA"), which Rules are deemed to be incorporated by reference to this Section. The tribunal shall consist of one arbitrator who shall be appointed by a vice-president of the LCIA. The seat of the arbitration shall be London and the language shall be English. Both parties waive the right, if any, to obtain any award for exemplary or punitive damages or any other amount for the purpose or imposing a penalty from the other in any arbitration or judicial proceeding or other adjudication arising out of or with respect to this Letter Agreement, or any breach hereof, including any claim that this Letter Agreement, or any part hereof, is invalid, illegal or otherwise voidable or void. The arbitrator may award reasonable attorney fees and costs to the prevailing party. Any arbitration award shall be final and binding and may be entered into by any court having jurisdiction. The obligation to arbitrate shall not be binding upon MEL with respect to requests for temporary restraining orders, preliminary injunctions or other procedures in a court of competent jurisdiction to obtain interim relief when deemed necessary by such court to preserve the status quo or prevent irreparable injury pending resolution by arbitration of the actual dispute between the parties. Any such claims shall be brought to the courts of England and Wales, and the parties hereby irrevocably and unconditionally consent to personal jurisdiction of such courts and venue in England and Wales in any such action for injunctive relief or provisional relief.

This Letter Agreement shall be governed by and interpreted in accordance with the laws of England and Wales. You and MEL expressly waive the application of the United Nations Convention on Contracts for the International Sale of Goods, which shall not apply to this Letter Agreement or any transaction between you and MEL. You hereby waive any rights that you may otherwise have to assert any rights or defenses under the laws of the Territory, or to require that litigation brought by or against you in connection with this Letter Agreement be conducted in the courts or other forums of the Territory.

The parties shall maintain the absolute confidentiality of this Letter Agreement, the terms of this Letter Agreement, and the transactions contemplated by this Letter Agreement. You may not voluntarily or by operation of law assign, hypothecate, delegate or otherwise transfer or encumber all or any part of your rights,

duties or other interests in this Letter Agreement without the prior written consent of MEL, which consent may be withheld in MEL's sole and absolute discretion.

You and MEL have agreed that this Letter Agreement shall be prepared in the English language only. This Letter Agreement supersedes all prior oral and written discussions and communications between us and constitutes our sole and exclusive understanding with respect to the subject matter hereof.

Yours truly,

MONSTER ENERGY LTD.

_____

Rodney Sacks
Director

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ACKNOWLEDGED AND AGREED TO:

KALUNDU BEVERAGES LIMITED

By:_____
Print Name: N.M. KTSGWELL
Title: MANAGING DIRECTOR
Date: 7/2/2019

EXHIBIT A **KALUNDU BEVERAGES LIMITED**

BEVERAGE BASES

PREDATOR	
X	Predator

PRODUCTS

PREDATOR – ALL SKUS	
X	Predator Gold

To the extent MEL has supplied or may agree to supply any Beverages Bases to you which are not listed above, it is understood that your right to prepare, package and sell the Products is limited to that specific transaction only. No course of conduct or usage of trade may be relied upon or construed to create any obligation on MEL to sell or continue to sell such Beverages Bases to you nor shall the same create any right in favor of you.

MEL reserves the right to repurchase at your cost, and make other arrangements for sale of, any Beverages Bases and/or Products that are not actively prepared, packaged or sold.

EXHIBIT B **KALUNDU BEVERAGES LIMITED**

THE TERRITORY

Zambia

In the event of a dispute with respect to territorial boundaries between you and any other seller of MEL products, MEL shall have the right to decide such dispute in its sole discretion, and any such decision shall be final and binding upon the parties.

EXHIBIT C **KALUNDU BEVERAGES LIMITED**

AUTHORIZED SUPPLIERS

- COCA-COLA BEVERAGES OF SOUTH AFRICA (PTY) LIMITED
- Any affiliate of MEL – Being any entity that directly or indirectly through one or more intermediaries, controls or is controlled by or is under common control with MEL.

EXHIBIT D **KALUNDU BEVERAGES LIMITED**

TRADEMARKS

PREDATOR ENERGY

PREDATOR